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Order QR

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED : 09-10-2026

CORAM

THE HON'BLE MR.JUSTICE SUNDER MOHAN

CRL MP No.16662 of 2026
in
CRL A No.1101 of 2026

Marimuthu @ Pannu Marimuthu
S/o.Manipillai @ Mani,
Sadaiyapadaiyachi Street,
Ariyalur District.

...Petitioner/Appellant/
Accused

Vs

The State Rep. by,
The Inspector of Police,
Ariyalur Police Station,
Ariyalur District.
Crime No.2 of 2025.

...Respondent/
Complainant

Prayer : Criminal Miscellaneous Petition filed under Section 430(1) of BNSS, 2023 praying to suspend the sentence imposed in Judgement passed by the Learned Additional District and Sessions Court, Ariyalur in SC.No.73 of 2025 dated 31.07.2026 and enlarge the Petitioner on bail pending disposal of the above appeal.

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For Petitioner : Mr.P.Muthamizhselvakumar

For Respondent : Ms.Sharada Vivek
Additional Public Prosecutor

ORDER

The Criminal Appeal challenges the Judgment passed in S.C.No.73 of 2025 by the learned Additional District and Sessions Judge, Ariyalur, holding the petitioner guilty of the offences under Sections 115(2) of BNS and 4 of TNPHW Act 2022 (3 counts) and sentencing him to undergo one year of SI for the offence under Section 115(2) of BNS and to undergo two years of RI (each) and to pay a fine of Rs.10,000/- i/d to undergo three months of SI (each) for the offence under Section 4 of TNPHW Act 2022 (3 counts) .

2. Aggrieved by the same, the petitioner has preferred Crl.A.No.1101 of 2026 before this Court along with the instant criminal miscellaneous petition.

3. The learned counsel for the petitioner would submit that a fixed sentence of imprisonment has been imposed on the petitioner; that the petitioner has raised substantial grounds in the appeal; and that the petitioner has prayed for suspension of sentence pending disposal of the appeal.

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4. Heard the learned Additional Public Prosecutor and perused the materials available on record.

5. The trial Court had suspended the sentence for a period of one month. Considering the fact that the petitioner/appellant has raised substantial grounds in the appeal and the appeal is not likely to be taken up in the near future, this Court is inclined to grant the relief of suspension of sentence to the petitioner.

6. Accordingly, this criminal miscellaneous petition stands allowed, and the sentence imposed on the petitioner is suspended till the disposal of the above criminal appeal, and the petitioner is ordered to be released on bail on the following conditions:

> (a).The petitioner shall execute a bond for a sum of Rs.10,000/- (Rupees Ten Thousand only), with two sureties, each for a like sum to the satisfaction of the learned Additional District and Sessions Judge, Ariyalur;
>
> (b).The petitioner and the sureties shall affix their photographs and Left Thumb Impression in the surety bond and the Trial Court may obtain a copy of their Aadhar card or Bank pass Book and mobile numbers to ensure their identity;

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(c).The petitioner shall appear before the respondent police once in fifteen days and before the Trial Court on the first working day of every month at 10.30 a.m. until the disposal of the appeal and if he is not able to appear before the Trial Court on any day, he shall make arrangements to file an application under Section 317 Cr.P.C. and shall appear before the Trial Court on any other day in lieu of the date of his absence, as directed by the Trial Court.

09-10-2026

Index: Yes/No
Speaking/Non-speaking order
Neutral Citation: Yes/No

Issue Order Copy Today.

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To

1. The Additional District and Sessions Judge,
   Ariyalur.

2. The Inspector of Police
   Ariyalur Police Station,
   Ariyalur District.

3. The Public Prosecutor,
High Court, Madras.

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CRL MP No. 16662 of 2026
in
CRL A No. 1101 of 2026

09-10-2026

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